

Affordable Housing New Construction Application & Guidelines

January 1 through December 31, 2024

The affordable housing new construction (AHNC) offering provides technical guidance and incentives for developers of residential projects that increase the energy efficiency for income eligible households. In order to participate in the AHNC offering, buildings must include eligible units* that are targeted to households at or below 80% area median income (AMI).

Participant buildings must adhere to the high-performance energy conservation measures referenced in the [ComEd Multi-Family Standard](#)* or [Passive Building Pathway Overview](#). The Standard includes an integrated bundle of energy conservation measures (ECMs) that can be applied to new construction and renovation projects across single-family, low-rise, mid-rise and high-rise multi-family buildings. The tiered ECMs are designed to result in significant energy savings over the current Illinois Energy Conservation Code baseline. Compliance with this reference Standard must be achieved for all living spaces within the participant building(s)*.

Select One Pathway Below:

Affordable Housing New Construction Incentive Summary ☐

Base Package	Incentive Rate per IE-gsf*	Requirements	
Mandatory	\$3.00	Meet current <i>ComEd Multi-Family Standard</i> requirements	
Optional Measures**	Additional Incentive Rate per IE-gsf*	Requirements (Additional Detail Provided)	Select Optional Measures Being Pursued
Dwelling-Unit Heat Pumps	\$0.80	Install dwelling-unit heat pump HVAC	☐
Energy Recovery Ventilation	\$0.40	Install energy recovery ventilation	☐
Advanced Controls	\$0.25	Smart thermostats and advanced lighting controls	☐
High-Efficiency Common Area Lighting	\$0.30	Achieve high-efficiency lighting power density in all common areas	☐
Heat Pump Water Heaters	\$1.20	Install heat pump water heating	☐
Dwelling-Unit Electrification	\$0.30	No gas bill or gas connection within the living units	☐
Total Incentive Package Incentive Rate/IE-gsf		Requirements	
\$6.25		Meet all requirements listed above	

* Incentives levels are calculated per gross square foot (gsf) of income eligible (IE) living space (IE-gsf).

** Projects must meet all requirements of Base Package as prerequisite to optional measures.

AHNC Application & Guidelines

Affordable Housing Moderate Rehab Incentive Summary ☐

Base Package	Incentive Rate per IE-gsf*	Requirements	
Mandatory	\$1.00	Meet current ComEd Multi-Family Moderate Rehab requirements	
Optional Measures**	Additional Incentive Rate per IE-gsf*	Requirements (Additional Detail Provided)	Select Optional Measures Being Pursued
High-Performance Windows	\$0.25	Replace windows	☐
High-Efficiency Common Area Lighting	\$0.30	Achieve high-efficiency lighting power density in all common areas	☐
Heat Pump Water Heaters	\$1.20	Install heat pump water heating	☐
Dwelling-Unit Heat Pumps	\$0.80	Install dwelling-unit heat pump HVAC	☐
Dwelling-Unit Electrification	\$0.30	No gas bill or gas connection within the living units	☐
Total Incentive Package Incentive Rate/IE-gsf		Requirements	
\$3.85		Meet all requirements listed above	

* Incentives levels are calculated per gross square foot (gsf) of income eligible (IE) living space (IE-gsf).

** Projects must meet all requirements of Base Package as prerequisite to optional measures.

Passive Building Pathway Incentive Summary ☐

Timing	Participation Step**	Incentive Rate per Income Eligible (IE) Unit
Pre-construction	Feasibility study	\$10,000
	Design certification	\$15,000
	Building training	\$1,000
Post-construction	Phius Certification	\$5,000 per unit up to \$325,000 (up to 65 IE units)*

* Projects larger than 65 IE units will be eligible for ComEd AHNC incentives for income eligible square footage in excess of 65 units. This will be calculated based on the applicable incentive rate along with the average gross square footage of all income eligible units.

** Refer to *Passive Building Pathway Overview* for additional terms.

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AHNC Participation Timeline

1. Apply Early

- Customer confirms that the program eligibility requirements are met.
- Customer submits this application, signed terms and conditions, evidence of income eligible unit affordability and any available design documentation or narratives.
- Application submission begins the review process but does not guarantee acceptance into the program.

2. Receive Eligibility Letter and Estimated Incentive

- Program team conducts initial design review and, for accepted projects, issues eligibility letter with estimated incentive.

3. Collaborate With Program Team to Develop Energy Specifications Detailing Project's Compliance with Chosen Energy Conservation Measures

- Program team conducts intermediate review during design development.
- Program team develops Energy Specifications using project documentation and submittals; these will be referenced in Incentive Agreement.
- Customer submits IRS form W-9(s).

4. Submit Intermediate Design Review

- During design development phase, project team submits intermediate design documentation for preliminary review by the program team.

5. Submit Construction Documents and Design Substantiation Documents

- Program team reviews construction documents and substantiation documents for design phase compliance with the *ComEd Multi-Family Standard*.
- Project financial records documenting affordable unit count must be provided before the incentive agreement can be issued:
 - Official award notice from affordable housing sponsor or;
 - Listing of project in public database of affordable housing such as Section 8 or;
 - Deed recordation of Affordable Rental Agreement detailing number of units subject to affordability covenant.
- Alternatively, for non-tax credit funded projects provide one of the following:
 - Copy of pro forma demonstrating rent levels and escalation over loan term or;
 - Deeds, covenants, or terms and conditions in financing or authorization agreements stipulating affordability levels and tenure. Includes CDFIs etc. or;
 - Section 9 or other affordable tax abatement.

6. Receive and Sign Incentive Agreement

- Program team finalizes energy specifications outlining each measure in compliance and issues incentive agreement.
- Customer signs and returns incentive agreement.

7. Support Field Inspection

- Program team conducts field inspection on energy conservation measures upon project completion.

8. Submit Final Substantiation Documentation

- Customer submits testing report(s) and final substantiation documentation.

9. Receive Incentive Payment

- Sign and return Payment Form.
- **ComEd cannot issue certain incentives or rebates unless it is provided with: 1) certification that measures were self-installed by the ComEd customer, or 2) evidence that the measures were installed by an installer certified with the Illinois Commerce Commission.**

10. Support Program Evaluation

- If required, customer participates in utility evaluator third-party evaluation interviews and customer satisfaction survey.

Please refer to *Passive Building Pathway Overview* for timeline and additional requirements.

AHNC Application

DIRECTIONS: Please save a copy of this form to your computer by selecting "FILE/SAVE AS" before entering text and numbers. Then fill in your information electronically and select "SAVE." Note that this form requires the current Adobe Reader® version to function properly. Download the most recent version of Adobe Reader® at <https://get.adobe.com/reader/>.

Affordable Housing New Construction Program Application

Please check the active boxes below.

When applying for the ComEd® Energy Efficiency Program affordable housing new construction offering, the ComEd customer will:

- ☐ Confirm the following eligibility requirements are met:
 - ☐ Project is early in the planning process.
 - ☐ Project includes income eligible units targeted to households at or below 80% area median income (AMI). Financial records documenting affordable unit count must be provided.
 - ☐ Project will exceed the current Illinois Energy Conservation Code requirements for energy efficiency.
 - ☐ Customer intends to adhere to the *ComEd Multi-Family Standard* or Phius Certification.
 - ☐ Project is located in the ComEd service territory.
- ☐ Commit to participating fully in the design collaboration and substantiation processes, including site inspection(s) and documentation. See *Participation Timeline** section of this document (*AHNC Program Application and Guidelines**) or *Passive Building Pathway Overview and Requirements*.
- ☐ Review and agree to the attached program terms and conditions.

Submitting an Application

Applications under this program will be accepted on an ongoing basis through December 31, 2024.

If you are applying for tax credits or other funding and require a program eligibility letter from ComEd indicating your pursuit of AHNC incentives through the affordable housing new construction offering, you must complete and submit this application and all required documentation to ComEd no less than two weeks prior to the application deadline.

Additional Eligibility Information

Financial incentive "stacking," or receipt of multiple financial incentives for identical energy efficiency upgrades from more than one utility program, is not allowed. All projects must be located in the ComEd service territory and may not be a municipal utility customer, unless prior approval has been given by ComEd. The following technologies or approaches are not eligible for technical assistance or financial incentives through the new construction offering: renewable energy, combined heat and power, on-site generation, thermal storage or peak shifting. Energy savings from combined heat and power systems are not eligible for technical assistance or financial incentives through the affordable housing new construction offering, but may be eligible for another ComEd Energy Efficiency Program incentive.

For More Information

To apply or to discuss project eligibility please contact the team:

Email: BusinessEE@ComEd.com (10MB file size limit; submit multiple emails if necessary)

Call: **855-433-2700**

Mail: ComEd Energy Efficiency Program
Attn: New Construction Team - AHNC
431 Catalyst Way
Madison, WI 53719

Visit: ComEd.com/AffordableHousing

Required Information

All fields are required. Application must be signed by the customer.

SECTION 1: Project Information

Building types (select all that apply): ☐ Multi-family ☐ Multi-family mixed-use ☐ Single-family ☐ Other:

Housing type: ☐ Family housing ☐ Senior housing ☐ Supportive housing ☐ Other:

Eligible project types: ☐ New construction ☐ Renovation

Affordable funding involved: (eg. LIHTC 9%, PSH, local funding, etc.):

Project name:

Address (If multiple addresses, include in Description field):

City:

State:

IL

ZIP code:

Description of project, number of stories and scope:

Number of buildings:	Gross building area (gsf):	Number of total units:	Number of units targeted to households at or below 80% AMI:
Design start date:	Design completion date:	Current project phase:	Project closing date:
Estimated construction start date:		Estimated construction completion date:	
Electric utility for building (select one): ☐ ComEd ☐ Other:			
Natural gas utility for building (select one): ☐ Nicor Gas ☐ All Electric ☐ Other:			
Certification sought (e.g. LEED™, ENERGY STAR®, Phius, Enterprise Green Communities, etc.):		Preliminary drawings or scope of work documents available? ☐ Yes ☐ No	

Measure Installation Information

Please be aware that legislation requires ComEd to collect project installation information.

☐ I acknowledge that pursuant to Section 16-128B of the Illinois Public Utilities Act, ComEd cannot issue certain incentives or rebates unless it is provided with:

1. certification that measures were self-installed by the ComEd customer, or
2. evidence that the measures were installed by an installer certified with the Illinois Commerce Commission.

Select how energy efficiency measures will be installed:

☐ I will use my own staff to self-install my project

☐ I will purchase equipment from a contractor, but will use my own staff to self-install my project

☐ I will use an ICC certified trade ally, contractor or subcontractor to install my project where the incentive per measure is greater than \$300. (A ComEd outreach professional will contact you prior to construction completion to collect installer information)

Required Information

SECTION 2: Customer or Design Team Lead Signature

I verify this information is correct, that I meet all eligibility requirements and request consideration for participation under the ComEd Energy Efficiency Program. By signing, I agree to the terms and conditions listed at the end of this application.

Customer signature:	Print name:	Date:	
Company:			
Address:	City:	State:	ZIP code:
Telephone:	Email:		

Please complete the entire application, then email to: BusinessEE@ComEd.com

Contact Information for Project Team

Customer Information

Name:	Title:	Company:	
Address:	City:	State:	ZIP code:
Telephone:	Email:		

Owner (if different from above)

Name:	Title:	Company:	
Address:	City:	State:	ZIP code:
Telephone:	Email:		

Architect or Design Team Lead

Name:	Title:	Company:	
Address:	City:	State:	ZIP code:
Telephone:	Email:		

General Contractor or Equivalent

Name:	Title:	Company:	
Address:	City:	State:	ZIP code:
Telephone:	Email:		

Mechanical Engineer

Name:	Title:	Company:	
Address:	City:	State:	ZIP code:
Telephone:	Email:		

Electrical Engineer

Name:	Title:	Company:	
Address:	City:	State:	ZIP code:
Telephone:	Email:		

Terms and Conditions

Commonwealth Edison Company (ComEd) and Nicor Gas (with their representatives and contractors collectively the “new construction team”) are offering affordable housing new construction services with incentives under the ComEd® Energy Efficiency Program to facilitate the implementation of cost-effective energy efficiency improvements for eligible customers.

Program Effective Dates

Program incentives are offered to applicable affordable housing new construction and renovation projects until approved funds are exhausted or December 31 of each program year, whichever comes first. The effective program dates are January 1, 2024 through December 31, 2024.

Subsequent program year budgets and plans will be made available toward the end of the existing program year. At the current time, ComEd has a commitment to provide this program through December 31, 2024.

Projects with estimated completion dates beyond December 31, 2024, will be considered on a case-by-case basis. Projects that are accepted will be required to document progress on design and construction to maintain and extend incentive reservation.

Program and Project Eligibility

The program offers cash incentives, technical guidance and whole-building solutions to enhance energy efficiency. Program incentives are available to all nonresidential customers who pay into the Energy Efficiency Pricing Performance (Rider EEP) regardless of retail electric supplier. Program incentives are not available to residential customers. Funds are limited and subject to availability.

All accounts that an eligible large private energy customer has chosen to and been approved to opt out of the ComEd Energy Efficiency Program for the period beginning January 1, 2024 may not contribute to or participate in the ComEd Energy Efficiency Program as of January 1, 2024.

Project requirements under the ComEd Energy Efficiency Program include the following:

- Projects must involve new measures installed in a new building or major renovation project that result in a permanent reduction in electrical energy usage (kWh).
- Equipment must be installed and operational.
- Equipment must be new (not used or rebuilt and not for resale) and used at the address for which savings are claimed.
- Replaced equipment must be permanently removed. All removed materials, including lamps and ballasts containing polychlorinated biphenyls (PCBs), must be permanently taken out of service and disposed of in accordance with local codes and ordinances. Resale of replaced equipment is expressly forbidden.
- Any measures installed at a facility must be sustainable and provide 100% of the energy benefits as stated in the application for a period of five years or for the life of the project, whichever is less. If the customer ceases to be

a delivery service customer of ComEd or removes the equipment or systems at any time during the five-year period or the life of the project – without having replaced the equipment or system with an equally or more energy-efficient equipment or system during that time – the customer may be required to return a prorated amount of incentive funds to ComEd.

Projects that are NOT eligible for an incentive include, but are not limited to, the following:

- On-site electricity generation.
- Energy savings due to combined heat and power systems are not eligible for incentives through the new construction offering, but may be eligible for a custom incentive.
- Projects involving gas-driven equipment in place of electric equipment (such as a chiller).
- Projects using energy savings devices that do not demonstrate measurable and verifiable energy and/or demand savings, including power conditioning (power factor correction, harmonic current reduction, transient voltage protection, lighting voltage regulation or other power-conditioning measures such as interruptible power supplies, rectifiers, etc.) or black box solutions (software, hardware, system or material in which the efficiency is not supported with ComEd accepted certified test results).
- Projects focused primarily on power factor improvement.
- Projects that involve peak-shifting (and not kWh savings).
- Renewables.
- Projects that repair or replace existing equipment with like equipment.
- Projects for the sole purpose of implementing demand response measures.
- Projects receiving funding for the same equipment through any other Energy Efficiency Portfolio (EEP) programs offered by ComEd, Ameren and Nicor Gas.
- Custom projects with simple paybacks greater than the equipment life.
- Used and/or refurbished equipment.

Reapplication

This application is valid for one year from the submittal date. After one year, if a signed Incentive Agreement has not been submitted to ComEd, customers will be required to reapply to the program. *See *Passive Building Pathway Overview* for pathway specific terms.

If construction has not begun within 270 days following an Incentive Agreement signature date, customers may be required to reapply. *See *Passive Building Pathway Overview* for pathway specific terms.

It is the responsibility of the customer to notify the program of significant changes to the project's size, scope or programming that occurs at any time after the application has been submitted; such projects may be required to reapply.

Terms and Conditions

Incentive Agreement

Issued to the customer, the incentive agreement confirms that the project design documentation has been reviewed by the AHNC team for compliance with the program requirements and indicates the resultant estimated incentives for which the project will qualify if executed in compliance with the *ComEd Multi-Family Standard* or Phius Certification. The incentive agreement form must be signed and returned within 30 days of issue.

Funds are reserved for a project when a signed incentive agreement is received. Applicants are encouraged to call 855-433-2700 if they have any questions about documentation requirements.

Inspections

ComEd reserves the right to inspect all affordable housing new construction projects to verify compliance with the program standard and the accuracy of project documentation. This may include pre-installation and/or post-installation inspections, detailed lighting layout descriptions, metering, data collection, interviews and utility bill data analyses. Upon reasonable notice by ComEd, the customer must allow access to project documents and the facility where the measures were installed for a period of five years after receipt of incentive payment by ComEd.

Incentive Payments

Customers without a Federal Employer Identification Number (FEIN) are ineligible for incentives.

Substantiation and Field Verification

Substantiation documentation and field verification is required by the program prior to payment of incentives. The team reserves the right to request supporting documentation as deemed necessary to ensure project eligibility and to verify that the expected energy savings will occur. Requested information could include: plans, specifications, manufacturer's information, scope of work documents, invoices and purchase orders, Phius Certification and documentation and WUFI Passive modeling files. Project invoices should provide sufficient detail to separate the project cost from the cost of other services, such as repairs and building code compliance. All customer information will be held in confidence.

The location or business name on the invoice must be consistent with the information listed on the final measure installation confirmation. The confirmation and all required supporting documentation should be received by November 15, 2024, to be applicable for the 2024 calendar year.

Evaluation, Measurement and Verification

The ComEd Energy Efficiency Program is evaluated annually by an independent third-party evaluator, as required by law. The customer's completed project may be selected for evaluation. Depending on the nature of the project, evaluation may include measurement and verification (M&V), the process of monitoring, measuring and/or verifying data related to equipment operation and electrical consumption. Upon reasonable notice, the customer agrees to participate fully in the evaluation process by allowing access to the facility where the project took place and

providing information and access to data required for M&V to the program's evaluator.

Requirements for New Construction Project Electricity and Gas Savings Calculations

The customer will be responsible for repayment of incentives if program terms and conditions are violated as determined by ComEd. The team is solely responsible for the final determination of the annual energy savings to be used in calculating the incentive amount. The annual electricity and gas savings will be calculated using industry-accepted engineering algorithms or simulation models. The applicant must provide the new construction team with requested information necessary to calculate potential savings.

Tax Liability

Incentives may be taxable under federal and state tax codes and, if more than \$600, will be reported to the IRS unless the customer provides acceptable proof that it is exempt from payment of such applicable taxes. In any event, ComEd is not responsible for any taxes that may be imposed on your business as a result of your receipt of an affordable housing new construction incentive or for providing legal or accounting advice regarding such. Customer should consult with its tax accountant or advisor regarding potential tax liability.

Disputes/Governing Law

This application shall be exclusively governed by and interpreted in accordance with the laws of the State of Illinois. Any litigation between the parties shall be prosecuted only in the state or federal courts located in Cook County, Illinois.

Toxic Materials

Neither ComEd, nor its consultants, contractors and/or subcontractors, shall have any responsibility for the discovery, presence, handling, removal, disposal of, or exposure to hazardous materials of any kind in connection with customer's facility, including without limitation, asbestos, asbestos products, PCBs or any other toxic substances.

Limitations of Liability

The customer shall independently evaluate any advice or information offered by ComEd related to estimates of electricity savings or program costs and is solely responsible for the selection and implementation of Energy Conservation Measures (ECMs).

In no event will ComEd, Nicor Gas, their consultants, contractors, and/or subcontractors be liable for a customer's failure to achieve a specified amount of energy savings, the operation of the customer's facilities or any incidental or consequential damages of any kind in connection with this application or the implementation of ECMs at the customer's facilities. In no event will the new construction team be liable to the customer for any lost profits, lost savings or incidental, indirect, special or consequential damages, arising out of the customer's participation in this program. The state of Illinois exempts itself from any claims, demand, and actions based upon or arising out of any services performed for the program.

Each party hereby agrees to defend, indemnify and hold

Terms and Conditions

harmless the other party, its consultants, contractors and subcontractors and their respective officers, employees, agents, assigns and successors-in-interest ("Indemnified Parties") from and against any third party claims, damages, losses, liability, costs (including attorney's fees and expenses) for bodily injury to any person (including death resulting therefrom) and property damage arising out of or in connection with the program, except to the extent such claims, damages, losses, liability and costs are caused by the other party.

Disclaimer

ComEd, in its sole discretion, may change any of the terms and/or conditions of this program upon thirty (30) days written notice to customer and/or trade ally.

ComEd does not guarantee that certain energy savings will be achieved and does not make any warranties associated with the measures eligible for incentives under this program. ComEd has no obligations regarding and does not endorse or guarantee, any claims, promises, representations, or work made or performed, or equipment furnished or installed by any contractors, subcontractors or vendors that sell or install energy-efficiency measures.

The customer shall be entitled to the energy cost savings realized by the customer that result from the installation of ECMs at the customer's site. In consideration of the services provided by ComEd as part of this program, the customer agrees that ComEd is entitled to 100% of the rights and benefits associated with the measures, including without limitation PJM products and all other attributes, credits or products associated therewith under any regional initiative or federal, state or local law, program or regulation and customer waives and agrees not to seek any right to the same.

ICC Certified Energy Efficiency Measure Installer

Beginning January 1, 2018, the ComEd Energy Efficiency Program will be responsible for verifying that an installing contractor is certified by the ICC for the installation of applicable measures prior to any incentive or rebate payout. Payment will be withheld if the installing contractor is not certified or until certification is approved / verified. This is not applicable if the customer self-installs the applicable measure(s).

Payment of incentives requires compliance with requirements as described in the Terms and Conditions. I verify that the information provided herein is true and correct. Signing of this application indicates acceptance of the above as well as the Terms and Conditions listed herein.

ComEd Customer Authorized Signature:

Print Name/Title:

Date:

Program Guidelines

Affordable Housing New Construction Incentive Information

Incentives will be calculated per gross square foot (gsf) of income eligible (IE) living space (IE gsf) as follows:

Base Package	Incentive Rate per IE-gsf*	Requirements
Mandatory	\$3.00	Meet current <i>ComEd Multi-Family Standard</i> requirements
Optional Measures**	Additional Incentive Rate per IE-gsf*	Requirements (Additional Detail Provided)
Dwelling-Unit Heat Pumps	\$0.80	Install dwelling-unit heat pump HVAC
Energy Recovery Ventilation	\$0.40	Install energy recovery ventilation
Advanced Controls	\$0.25	Smart thermostats and advanced lighting controls
High-Efficiency Common Area Lighting	\$0.30	Achieve high-efficiency lighting power density in all common areas
Heat Pump Water Heaters	\$1.20	Install heat pump water heating
Dwelling-Unit Electrification	\$0.30	No gas bill or gas connection within the living units
Total Incentive Package Incentive Rate/IE-gsf		Requirements
\$6.25		Meet all requirements listed above

* Incentives levels are calculated per gross square foot (gsf) of income eligible (IE) living space (IE-gsf).

** Projects must meet all requirements of Base Package as prerequisite to optional measures.

Affordable Housing Moderate Rehab Incentive Information

Incentives will be calculated per gross square foot (gsf) of income eligible (IE) living space (IE gsf) as follows:

Base Package	Incentive Rate per IE-gsf*	Requirements
Mandatory	\$1.00	Meet current <i>ComEd Multi-Family Moderate Rehab</i> requirements
Optional Measures**	Additional Incentive Rate per IE-gsf*	Requirements (Additional Detail Provided)
High-Performance Windows	\$0.25	Replace windows
High-Efficiency Common Area Lighting	\$0.30	Achieve high-efficiency lighting power density in all common areas
Heat Pump Water Heaters	\$1.20	Install heat pump water heating
Dwelling-Unit Heat Pumps	\$0.80	Install dwelling-unit heat pump HVAC
Dwelling-Unit Electrification	\$0.30	No gas bill or gas connection within the living units
Total Incentive Package Incentive Rate/IE-gsf		Requirements
\$3.85		Meet all requirements listed above

* Incentives levels are calculated per gross square foot (gsf) of income eligible (IE) living space (IE-gsf).

** Projects must meet all requirements of Base Package as prerequisite to optional measures.

Program Guidelines

Passive Building Pathway Incentive Information

Timing	Participation Step**	Incentive Rate per Income Eligible (IE) Unit
Pre-construction	Feasibility study	\$10,000
	Design certification	\$15,000
	Building training	\$1,000
Post-construction	Phius Certification	\$5,000 per unit up to \$325,000 (up to 65 IE units)*

* Projects larger than 65 IE units will be eligible for ComEd AHNC incentives for income eligible square footage in excess of 65 units. This will be calculated based on the applicable incentive rate along with the average gross square footage of all income eligible units.

** Refer to *Passive Building Pathway Overview* for additional terms.

ComEd reserves the right to negotiate the incentive amount with the incentive applicant depending upon availability of incentive funds, scope and size of project. ComEd reserves the right to modify the incentive amounts as needed to fulfill the EEPS statutory requirements or based on current market development, technology development and evaluation, measurement and verification (EM&V) results and program implementation experience. The ComEd program reserves the right to waive funding limitations and other program parameters. The ComEd program has the authority to implement pilot projects under this program.

Program Standard

Participant buildings must adhere to the high-performance energy efficiency reference standard set forth in the *ComEd Multi-Family Standard* ("the standard"). The standard includes an integrated bundle of energy cost reduction measures (ECMs) that can be applied to new construction and renovation projects across single-family, low-rise, mid-rise and high-rise multi-family buildings. The bundled ECMs are designed to result in significant energy savings over the current Illinois Energy Conservation Code baseline. The standard is prescriptive; meeting the standard is the minimum required for obtaining an incentive.

Passive Building Pathway participants must adhere to the *Passive Building Pathway Overview* requirements.

Compliance with the standard must be achieved for all spaces within the participant building(s), not just living spaces targeted to households at or below 80% AMI.

Eligibility

Eligible Applicants

This program is open to affordable housing developers building new construction or executing renovation projects in single-family and/or multi-family buildings. Developers must meet the following:

- Projects must be targeted to households at or below 80% Area Median Income (AMI)¹; and
- Applicants will be required to indicate and ensure the number of units that will be targeted to households at or below 80% AMI.

Eligible Spaces

Incentives are based on the gross square footage of eligible living space. Eligible living space includes: living units targeted to households at or below 80% AMI and qualified shared living spaces (e.g., common kitchens, fitness facilities, laundry, resident library, resident lounge, mailroom, dining, other spaces as approved by the program). Qualified living spaces must primarily serve residents. Passive Building Pathway incentives are based on a flat rate per IE unit.

Ineligible Spaces

Non-living spaces and living spaces that do not target households at or below 80% AMI will not be included in the square footage used for incentive calculations. Non-living spaces include, but are not limited to, lobbies, corridors, stairwells, administrative offices, nursing space, commercial space, conference rooms and basement (unless basement square footage will serve as code-compliant living units).

Administration

For an overview of the offering administration milestones, refer to the Participation Timeline in the *Applications and Guidelines* document or *Passive Building Pathway Overview* for project participating in the Passive Building Pathway.

¹ For information on Area Median Income (AMI), see <https://www.huduser.gov/portal/datasets/il.html>.

Program Guidelines

Application Process

Prospective applicants are encouraged to contact ComEd Energy Efficiency Program staff prior to submittal of the application and as early in the design process as possible.

If preliminary drawings or narratives of the project exist, these documents shall be submitted with the application in PDF format.

Applications under this offering will be accepted on an ongoing basis, but must be submitted by December 31, 2024.

Payment Schedule

For projects following the *ComEd Multi-Family Standard*, incentive payments will be made after construction verification.

For Passive Building Pathway projects see Incentive Summary above and *Passive Building Pathway Overview* for pre and post construction payment structure.

Full incentive payment will be made upon ComEd's verification that energy efficiency measures are installed and operational.



Energy Efficiency



Energy
Efficiency
Program